

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 6, 2023, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against CREDIRECT PRÉSTAMOS, S.L. (hereinafter, the respondent), indicating that "Having filed a lawsuit due to disagreement and lack of notification, which has been admitted by the Court 3 of Arenys de Mar (B.B.B.). The ASNEF file has not deleted the entry, violating Article 20 of the LOD, which states that if there is a legal claim involved, the entry cannot be made until it is resolved."

The complainant states that their personal data is registered in ASNEF at the request of the respondent in relation to a disputed debt before the Court of First Instance and Instruction No. 3 of Arenys de Mar. They provide a copy of the admission of the lawsuit filed by the complainant against the respondent, dated February 15, 2023, as well as the denial from ASNEF regarding the request for deletion due to confirmation of the debt at the request of the respondent, dated March 6, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicates that, on February 23, 2023, they were notified of a lawsuit for Violation of the Right to Honor filed by the complainant for having included their data in solvency files. However, they have not received any extrajudicial claim.

They summarize that the deletion of the data is not warranted due to the existence of a due and enforceable debt.

"The inclusion of the complainant's data in the delinquent file is due to no other reason than the non-payment of a due and enforceable debt. We remind you that the due date was October 27, 2022.

In the payment request dated November 11, 2022, sent via certified SMS, it was clearly stated that if the complainant did not pay the amount owed, their data would be included in the delinquent file.

Therefore, the existence of a request from my client cannot be questioned, nor can the existence of the debt. Furthermore, in the formal payment request made by the entity, contact details for my client were made available to the customer, in case they had any questions regarding the payment or the debt.

The complainant never contacted my client, which makes the surprised reaction regarding the existence of the debt inferred from the lawsuit incomprehensible."

"(...) Since payment has been communicated to them on several occasions and the complainant has not paid even the principal of the loans (1,500 euros), Credirect cannot deregister the user from such a file, to prevent them from repeating the operation of unjust enrichment."

THIRD: The result of the transfer process indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on June 6, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing process, to present any allegations they deemed appropriate within ten working days. The respondent, on October 5, 2023, indicated in summary, "(...) That we highlight the bad faith and recklessness of the complainant both in the judicial procedure and in the present allegation process before this agency, having been condemned in costs for their bad faith and recklessness in such judicial procedure by a Judgment that has become final without being appealed. We provide this Judgment (...)"

With this written allegation, they provided a copy of the Judgment dated July 31, 2023, issued by the Court of First Instance and Instruction No. 3 of Arenys de Mar in the procedure initiated by the complainant regarding the right to honor. This Judgment dismisses the lawsuit after analyzing the prior

warning regarding the inclusion of the data in the file made by the respondent and the existence of a certain, due, and enforceable debt.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Likewise, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on June 6, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission to processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

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e) personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the data controller;

f) personal data has been obtained in relation to the offering of information society services mentioned in Article 8, paragraph 1.

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers who are processing the personal data of the data subject's request for the erasure of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring processing imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical

purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make impossible or seriously hinder the achievement of the objectives of that processing, or

e) for the formulation, exercise, or defense of claims."

V

Joint Responsibility

Article 20 of the LOPDGDD, regarding credit information systems, in its paragraph 2 establishes that entities maintaining the system and creditors, regarding the processing of data related to their debtors, shall be considered joint controllers of the data processing, applying the provisions established by Article 26 of Regulation (EU) 2016/679, with the creditor entity being responsible for ensuring that the requirements for inclusion in the debt system are met, being liable for their non-existence or inaccuracy.

Article 26 of the GDPR, Joint Controllers, states that

"1. When two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers of the processing. The joint controllers shall determine in a transparent manner and by mutual agreement their respective responsibilities in complying with the obligations imposed by this Regulation, in particular regarding the exercise of the rights of the data subject and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them."

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apply to them. Said agreement may designate a point of contact for the interested parties.

2. The agreement referred to in paragraph 1 will duly reflect the respective functions and relationships of the joint controllers in relation to the interested parties. The essential aspects of the agreement will be made available to the interested party.

3. Regardless of the terms of the agreement referred to in paragraph 1, the interested parties may exercise the rights recognized by this Regulation against each of the controllers.

On the other hand, Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that "When two or more controllers jointly process data, the arrangement of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the response to access requests, shall not affect the rights of the data subjects against the controller to whom they direct their request."

VI

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the claimant, on February 22, 2023, requested the deletion of their data from Equifax, and that this request was denied on March 6, 2023, as confirmed by the responding party.

It is also noted that the claimant filed a lawsuit for the right to honor due to the inclusion of their data in Asnef, which was admitted for processing on February 15, 2023, and notified to the controller on February 23, 2023. In this lawsuit, the claimant raises the lack of prior warning before inclusion in the file and questions the existence of a certain, due, and enforceable debt. The judgment of July 31, 2023, dismisses the lawsuit (there was prior notice and the debt was certain).

The request for deletion was made one day before the lawsuit was communicated to the controller.

Therefore, the deletion of the data registered in Asnef should have been granted until the resolution of the judicial process.

However, considering that the present procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, and given that the deletion of the data is not appropriate as the

procedure followed in the Court of First Instance and Instruction No. 3 of Arenys de Mar has concluded with a declaratory judgment of the existence of the debt, it is appropriate to dismiss the claim that initiated the present procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim filed by Mr. A.A.A. against CREDIRECT PRÉSTAMOS, S.L.

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SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to CREDIRECT PRÉSTAMOS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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